

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

ELISIA SOLOMON,

Petitioner

VS.

TROY SOLOMON,

Respondent

) Case Number: FDI-24-799830

) Hearing Date: July 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: EX PARTE ORDERS: CLOSE OF ESCROW SALE DISTRIBUTIONS

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties in this case are Petitioner Elisia Solomon and Respondent Troy Solomon. The parties have three minor children, Sebastian (DOB: 1/2/2009), Avery (DOB: 10/20/2010), and Chase (DOB: 10/12/2012).
- 2) On 6/12/2024, Petitioner filed a Petition for Dissolution of Marriage. In the Petition, Petitioner states the parties married on 10/7/2000 and separated on 4/19/2020, for a marriage of 19 years and 6 months. Petitioner listed 9 community properties.
  - a. 3006 Sacramento St. San Francisco, CA
  - b. 2563 W. Pueblo Ave. Napa, CA
  - c. 656 Julmar Cir. Fairfield, CA
  - d. 2820 Kilburn Ave. Napa, CA
  - e. 20 Thomas Lane Oldsmar, FL
  - f. 1466 Hillview Ln. Tarpon Springs, FL
  - g. 2547 West Brook Ln. Clearwater, FL

1 h. 70 James Ct. Oldsmar, FL

2 i. 237 Hemmingway Dr. Oldsmar, FL

3 3) Per the Proof of Service of Summons filed 8/7/2024, the Petition and Summons were personally  
4 served on Respondent at 3006 Sacramento St. San Francisco, CA by a registered process server.

5 4) On 9/18/2024, Petitioner filed a Community Property Declaration listing the same 9 pieces of real  
6 property listed in the Petition. Petitioner's Community Property Declaration listed two additional  
7 pieces of real property as community property: "2818-2820 in Kilburn CA" and "18810  
8 Cloverstone, NC". The Community Property Declaration proposes that each party be awarded  
9 "one-half" of the equity in these properties.

10 5) On 9/20/2024, after Respondent failed to file a Response to the Petition, the Court entered  
11 Respondent's default. Attached to the Request to Enter Default is the Community Property  
12 Declaration Petitioner filed on 9/18/2024. The clerk mailed a copy of the Request to Enter  
13 Default (with the attached Community Property Declaration) to Respondent on 9/20/2024.

14 6) On 11/26/2024, Petitioner submitted a proposed True Default Judgment.

15 7) On 11/27/2024, Petitioner filed a Declaration in which she states, "During the marriage we  
16 acquired substantial assets which include our San Francisco residence (3006 Sacramento Street  
17 SF CA) and rental properties in California and Florida. Troy has managed these assets during the  
18 marriage and after separation. I asked Troy to give me the information for these properties  
19 including the rental income information, but Troy has ignored my requests."

20 8) On 11/27/2024, this Court set a prove-up hearing on Petitioner's request to enter the True Default  
21 Judgment. The Order Setting Prove-Up Hearing was mailed to both parties. The prove-up hearing  
22 occurred on 2/21/2025. Only Petitioner and her attorney appeared. At the prove-up hearing, the  
23 Court ordered Petitioner to have Respondent served with her Declaration filed 11/27/2024 as well  
24 as her proposed True Default Judgment. Per the Proof of Service filed 3/4/2025, these items were  
25 mailed to Respondent on 2/27/2025.

26 9) On 4/14/2025, the Court entered the True Default Judgment. The Judgment awards Petitioner sole  
27 legal and physical custody of the parties' children. The Judgment confirms as community  
28 property the 11 pieces of real property listed in Petitioner's 9/18/2024 Community Property  
29 Declaration. The Court's jurisdiction to divide the community assets was reserved. The Judgment

1 also requires Petitioner to pay Respondent \$2,912 per month in base child support plus an  
2 additional \$1,102 per month for “costs related to the educational or other special needs of the  
3 children” effective 7/1/2024.

4 10) On 5/12/2025, the Court entered an Income Withholding Order for Support to garnish from  
5 Respondent’s pay \$2,912 per month for base guideline child support.

6 11) On 5/1/2025, Petitioner filed a Request for Order asking the Court to compel the immediate  
7 listing and sale of the 11 pieces of real property “with net proceeds equally divided after  
8 satisfaction by Respondent from his share of sale process for all support / fee arrearages.”  
9 Petitioner further requests that “the Clerk of the Court or the Clerk’s designee be authorized upon  
10 Ex Parte application by Petitioner to sign any document on behalf of Respondent for the listing or  
11 sale of any of the properties.” Petitioner states that in 2020, she and the parties’ children vacated  
12 the “San Francisco residence” (3006 Sacramento St. SF CA) but Respondent has remained living  
13 there. Petitioner states Respondent has occasionally seen the children since the parties separated.  
14 Petitioner states Respondent has made no child support payments to date. Petitioner states the  
15 parties “acquired substantial assets” during marriage and Respondent has “managed these assets  
16 during the marriage and after separation.” Petitioner states, “Since entry of the April 14, 2025,  
17 Judgment my attorney has written Troy twice asking him to cooperate in selling the properties  
18 and in making support payments. Troy did not respond. If Troy does not cooperate in signing  
19 documents for the listing or sale of the properties listed in this motion, I ask that the Court  
20 authorize me to make Ex Parte applications to have the Clerk of the Court or the Clerk’s designee  
21 to sign any necessary documents on behalf of Troy.”

22 12) There is no Proof of Service on file showing service of Petitioner’s Request for Order filed  
23 5/1/2025. However, in Petitioner’s Supplemental Declaration filed 7/14/2025, she states she had  
24 her Request for Order personally served on Respondent and references a Proof of Service filed  
25 6/5/2025 (this document is not in the Court’s docket). In her Supplemental Declaration Petitioner  
26 also states: “After I filed this RFO I discovered that while Respondent was collecting the rents for  
27 the Florida properties, he has not been paying the real estate taxes for the Florida properties –  
28 Respondent has in fact not paid the real estate taxes since 2022. The real estate taxes on our  
29 Florida rental properties are now delinquent for taxes tax years 2023 and 2024. I have asked

Respondent to list and sell the rental properties, but he has ignored me... Respondent has not paid any of the child support payments as set forth in our Judgment.”

13) Per the Proof of Service filed 7/14/2025, Petitioner’s Supplemental Declaration was mailed to Respondent at the 3006 Sacramento St. address on 7/14/2025.

14) At the prior 7/22/2025 hearing, the Court ordered as follows:

a. The following properties, which the Court confirmed are community property in the Judgment filed 4/14/2025, shall be immediately listed for sale and sold.

- i. 3006 Sacramento St. San Francisco, CA
- ii. 2563 W. Pueblo Ave. Napa, CA
- iii. 656 Julmar Cir. Fairfield, CA
- iv. 2820 Kilburn Ave. Napa, CA
- v. 20 Thomas Lane Oldsmar, FL
- vi. 1466 Hillview Ln. Tarpon Springs, FL
- vii. 2547 West Brook Ln. Clearwater, FL
- viii. 70 James Ct. Oldsmar, FL
- ix. 237 Hemmingway Dr. Oldsmar, FL
- x. 2818-2820 in Kilburn CA
- xi. 18810 Cloverstone, NC

b. The parties shall meet and confer to select listing agents for the sale of these properties no later than 8/15/2025. If Respondent fails to meet and confer in good faith by 8/15/2025, Petitioner is authorized to unilaterally select real estate agent(s) to list and sell these properties. Both parties shall be CC’d on all written communications with the real estate agent(s).

c. Respondent shall cooperate with all directives by the real estate agent(s) to take all steps necessary to prepare, list, and sell the properties.

d. If Respondent fails to sign any documents necessary to prepare, list, and sell any of the properties, Petitioner is authorized to make an ex parte application to the Court to have the Clerk of the Court or the Clerk’s designee to sign such documents on Respondent’s behalf. Any ex parte application must include as an attachment the document(s)

Petitioner would like the Court to sign on Respondent's behalf. Any ex parte application must also include as an attachment documentary proof that the document(s) were first presented to the Respondent for his signature.

- e. If and when any of the properties are sold, 50% of the net sale proceeds shall be distributed directly to Petitioner. The remaining 50% net sale proceeds for each property shall be deposited into a blocked joint bank account in both parties' names. Neither party may make a withdrawal from the blocked joint bank account unless the parties have a written agreement or Court order permitting the withdrawal.
- f. The Court intends not to release Respondent's 50% of the net sale proceeds for any of the properties until it has adjudicated what amounts in child support arrears Respondent may owe Petitioner.
- g. A review hearing is set for Thursday, 1/15/2026 at 9:00 AM in Dept. 403 to review the parties' compliance with the orders set forth above, to monitor status, and to make any additional necessary orders. At least 20 calendar days prior to the next hearing date, both parties shall file and serve a declaration (not exceeding 10 pages, not including exhibits) providing an update to the Court and stating any requests for additional necessary orders. At least 10 calendar days prior to the next hearing date, the other party may file a declaration (not exceeding 10 pages, not including exhibits) responding to any requests by the other party for additional orders.

15) On 9/5/2025, the Court issued a Temporary Emergency (Ex Parte) Order permitting Court Executive Officer Brandon Riley to sign and initial the sale/listing agreements on behalf of Respondent for the San Francisco property, Fairfield property, and Florida properties.

16) On 12/5/2025, the Court issued an additional Temporary Emergency (Ex Parte) Order permitting Court Executive Officer Brandon Riley to sign and initial the sale/listing agreements on behalf of Respondent for the Fairfield property and North Carolina property.

17) On 1/7/2026, Petitioner filed an update declaration asserting that Respondent has continued to refuse to sign any documents; however, listing agreements for 6 of the 11 properties have now been signed pursuant to the Court's Temporary Emergency (Ex Parte) Orders issued 9/5/2025 and 12/5/2025. Petitioner further asserts that the Fairfield property is now in escrow and set to close

1 on 2/11/2026 with the estimated net proceeds at \$351,946.57. Petitioner requests that 50% of the  
2 net sale proceeds be distributed to her and that she be awarded \$79,434 from Respondent's 50%  
3 interest in the net sale proceeds for the 19 months of unpaid child support Respondent owes to  
4 Petitioner (\$4,014 x 19 months + \$3,168 in interest). Petitioner requests that Respondent's  
5 remaining interest be held in trust by Petitioner's attorney as Petitioner cannot open a joint bank  
6 account because Respondent will not cooperate or sign any documents. Petitioner requests that  
7 each party be assigned 50% of the taxable interest on the sale proceeds. Petitioner also requests  
8 the Court reserve jurisdiction over the attorney's fees and until after all the properties are sold as  
9 filing ex parte applications to get all the necessary documents signed is costly. Petitioner requests  
10 an additional compliance hearing on 3/26/2026. Petitioner attached a Proof of Service indicating  
11 her 1/7/2026 update declaration was served on Respondent by mail on 1/8/2026.

12 18) Respondent did not file an update declaration.

13 19) At the prior 1/29/2026 hearing, the Court ordered as follows:

- 14 a. Petitioner's unopposed request that 50% of the net sale proceeds from the sale of the  
15 Fairfield property be distributed to Petitioner after closing is GRANTED. The Court  
16 reaffirms the 7/22/25 order, which states, "If and when any of the properties are sold,  
17 50% of the net sale proceeds shall be distributed directly to Petitioner."
- 18 b. Petitioner's unopposed request that Respondent's 50% of the net sale proceeds from the  
19 sale of the Fairfield property be held in trust by Petitioner's attorney given Respondent's  
20 refusal to cooperate with the Court's 7/22/25 order to open a joint bank account is  
21 GRANTED.
- 22 c. Petitioner's unopposed request that each party be assigned 50% of the taxable interest on  
23 the net sale proceeds from the sale of the Fairfield property is GRANTED.
- 24 d. Petitioner's request that she be allocated \$79,434 from Respondent's 50% of the net sale  
25 proceeds for 19 months of unpaid child support Respondent owes to Petitioner (\$4,014 x  
26 19 months + \$3,168 in interest) is GRANTED.
- 27 e. The Court reserves jurisdiction over attorney's fees and costs.
- 28 f. A review hearing is set for 4/9/2026 at 9 AM in Dept. 403 to review the parties'  
29 compliance with the orders set forth above, to monitor status, and to make any additional

1 necessary orders. At least 20 calendar days prior to the next hearing date, both parties  
2 shall file and serve a declaration (not exceeding 10 pages, not including exhibits)  
3 providing an update to the Court and stating any requests for additional necessary orders.  
4 At least 10 calendar days prior to the next hearing date, the other party may file a  
5 declaration (not exceeding 10 pages, not including exhibits) responding to any requests  
6 by the other party for additional orders.

7 20) On 2/6/2026, the Court issued a Temporary Emergency (Ex Parte) Order permitting Court  
8 Executive Officer Brandon Riley to sign and initial sale and escrow documents for the Fairfield  
9 property.

10 21) On 3/20/2026, Petitioner filed an update declaration asserting that Petitioner is working to sell the  
11 North Carolina property and requesting the Court continue the review hearing for 90 days.

12 22) On 4/9/2026, the Court granted Petitioner's unopposed request that the Court continue the review  
13 hearing scheduled for 4/9/26 for 90 days. The matter was continued to 7/9/26 at 9 AM in Dept.  
14 403 to review the parties' compliance with the existing orders, to monitor status, and to make any  
15 additional necessary orders. At least 20 calendar days prior to the next hearing date, both parties  
16 shall file and serve a declaration (not exceeding 10 pages, not including exhibits) providing an  
17 update to the Court and stating any requests for additional necessary orders. At least 10 calendar  
18 days prior to the next hearing date, the other party may file a declaration (not exceeding 10 pages,  
19 not including exhibits) responding to any requests by the other party for additional orders.

20 23) On 5/19/2026, the Court issued a Temporary Emergency (Ex Parte) Order regarding the net sale  
21 proceeds from the North Carolina property awarding half to each party to be held in Petitioner's  
22 attorney trust account pending hearing set for 6/11/2026.

23 24) On 6/3/2026, Petitioner filed a supplemental declaration reiterating her requests for distribution of  
24 the net sale proceeds from the North Carolina property as follows: (a) half awarded to each party,  
25 with the other party indemnified and held harmless from any tax obligation arising from the other  
26 party's one-half; (b) reimbursement of \$8,985.48 from Respondent's one-half for expenses  
27 Petitioner advanced to prepare the property for sale; (c) \$20,070 from Respondent's one-half for  
28 unpaid child support Respondent owes Petitioner for February 2026 – June 2026 (i.e., \$4,104 per  
29 month x 5 months unpaid).

25) On the Court's own motion, the 6/11/2026 hearing was continued to 7/9/2026.

26) On 6/17/2026, the parties filed a Stipulation and Order agreeing to an advance of \$25,000 in funds to Respondent.

27) On 6/19/2026, Petitioner filed an update declaration reiterating her request set forth in her 6/3/2026 supplemental declaration and requesting a review hearing in October 2026 regarding the sale of the Sacramento Street property.

## **B. Findings and Order**

- 1) Petitioner unopposed requests for distribution of the net sale proceeds of the North Carolina property are GRANTED as follows:
- 2) The Court reaffirms its prior order that one-half of the net sale proceeds from the North Carolina property (18810 Cloverstone Circle, Cornelius, North Carolina) shall be awarded to each party, with the other party indemnified and held harmless from any tax obligation arising from the other party's one-half.
- 3) Petitioner shall be permitted to deduct reimbursement of \$8,985.48 from Respondent's one-half for expenses Petitioner advanced to prepare the property for sale.
- 4) Petitioner shall be permitted to also deduct \$20,070 from Respondent's one-half for unpaid child support Respondent owes Petitioner for February 2026 – June 2026 (i.e., \$4,104 per month x 5 months unpaid).
- 5) The matter is set for a **review hearing on 10/8/2026 at 9 AM in Dept. 403** to review the parties' compliance with the existing orders, to monitor status, and to make any additional necessary orders. At least 20 calendar days prior to the next hearing date, both parties shall file and serve a declaration (not exceeding 10 pages, not including exhibits) providing an update to the Court and stating any requests for additional necessary orders. At least 10 calendar days prior to the next hearing date, the other party may file a declaration (not exceeding 10 pages, not including exhibits) responding to any requests by the other party for additional orders.
- 6) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule



1 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
2 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
3 10 days may allow the other party to prepare a proposed order and submit it to the court in  
4 accordance with CA Rules of Court, Rule 5.125(d).  
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